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March 1, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-02

HANGZHOU QIANWANG DRESS CO., LTD.

v.

RDD FREIGHT INTERNATIONAL INC.

**ORDER COMPELLING PARTIES TO COMPLY FULLY WITH
DISCOVERY ORDER DATED FEBRUARY 1, 2018**

On February 1, 2018, the undersigned entered an order for the parties to comply with discovery. *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02 (ALJ Feb. 1, 2018) (Order Compelling Responses to Discovery). The parties have not fully complied with that order and Commission rules related to that order. Therefore, it is hereby

ORDERED that the parties take the following actions initially required by the February 1, 2018, order. The parties are reminded that failure to comply with a discovery order may result in sanctions, including dismissing a claim or entering decision by default.

An order of the presiding officer may:

- (1) Direct that the matters included in the order or any other designated facts must be taken to be established for the purposes of the action as the party making the motion claims;
- (2) Prohibit the disobedient party from supporting or opposing designated claims or defenses, or from introducing designated matters in evidence; or
- (3) Strike pleadings in whole or in part; staying further proceedings until the order is obeyed; or dismissing the action or proceeding or any party thereto, or rendering a decision by default against the disobedient party.

46 C.F.R. § 502.150(b).

FEBRUARY 1, 2018, ORDER PART I: RESPONDENT'S INITIAL DISCLOSURES.

The February 1, 2018, order states that it was not clear whether RDD Freight served its initial disclosures. Accordingly, RDD Freight was ordered to serve its initial disclosures on Hangzhou Qianwang and file with the Secretary its initial disclosures, or, if it had already served its initial disclosures, to file a copy with the Secretary on or before February 23, 2018. RDD Freight has not filed its initial disclosures with the Secretary. Therefore, it is hereby

ORDERED that on or before March 8, 2018, RDD Freight serve on Hangzhou Qianwang **and file with the Secretary** its initial disclosures. If RDD Freight has already served its initial disclosures, it is ordered to file a copy with the Secretary on or before March 8, 2018.

FEBRUARY 1, 2018, ORDER PART II: RDD FREIGHT'S RESPONSES TO HANGZHOU QIANWANG'S REQUEST FOR THE PRODUCTION OF DOCUMENTS AND THINGS.

The February 1, 2018, order states that RDD Freight acknowledged that it received Hangzhou Qianwang's Request for the Production of Documents and Things on RDD Freight. Accordingly, RDD Freight was ordered to serve on Hangzhou Qianwang and file with the Secretary its responses to Hangzhou Qianwang's Request, or, if it had already responded to the request for production, to file a copy with the Secretary *with the exception of documents responsive to Request No. 11*. RDD Freight has not filed its responses to Hangzhou Qianwang's Request with the Secretary. Therefore, it is hereby

ORDERED that on or before March 8, 2018, RDD Freight serve on Hangzhou Qianwang **and file with the Secretary** its responses to Hangzhou Qianwang's Request for the Production of Documents and Things *with the exception of any documents responsive to Request No. 11*, as it requests documents related to settlement discussions. See 46 C.F.R. § 502.75(c) ("No settlement offer, or proposal will be admissible in evidence over the objection of any party in any hearing on the matter."). If RDD Freight has already responded to the request for production, it is ordered to file a copy with the Secretary *with the exception of documents responsive to Request No. 11*.

FEBRUARY 1, 2018, ORDER PART III: HANGZHOU QIANWANG'S RESPONSES TO RDD FREIGHT'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS DATED 10/25/17.

and

FEBRUARY 1, 2018, ORDER PART IV: INTERROGATORIES.

The February 1, 2018, order states that RDD Freight served its "First Request for Production of Documents" dated 10/25/17 on the Hangzhou Qianwang at its designated mailing address, but that other than a superficial answer, Hangzhou Qianwang has been "coy about the questions raised and refused to produce information requested therein." Accordingly, Hangzhou Qianwang was ordered

to serve on RDD Freight and file with the Secretary its responses to RDD Freight's First Request for Production of Documents, or, if it had already responded, file a copy of the response with the Secretary. The February 1, 2018, order states that neither party stated that it had served interrogatories on the other party. Nevertheless, the parties were ordered to file any interrogatories it had served with the Secretary. If a party had served responses to interrogatories, the party was instructed to file the responses with the Secretary. If a party has been timely served interrogatories, but had not served responses, the party was ordered to serve the responses and file the responses with the Secretary.

On February 23, 2018, Hangzhou Qianwang mailed copies of Complainant's Objections and Responses to Respondent's First Set of Interrogatories, Complainant's Objections and Responses to Respondent's First Request for Production of Documents, and documents to which the responses refer. The responses are dated February 22, 2018.

Commission Rule 117 requires that a party filing documents with the Secretary include a statement of when it was served on the other party.

The original of every document filed with the Commission and required to be served upon all parties to a proceeding shall be accompanied by a certificate of service signed by the party making service, stating that such service has been made upon each party to the proceeding. Certificates of service may be in substantially the following form:

Certificate of Service

I hereby certify that I have this day served the foregoing document upon [all parties of record or name of person(s)] by [mailing, delivering to courier or delivering in person] a copy to each such person.

Dated at, _____ this ____ day of ____ [20__].

(Signature) _____

(For) _____

46 C.F.R. § 502.117. Neither of Hangzhou Qianwang's responses has a certificate of service stating that the responses and documents were sent to RDD Freight and when and how they were sent, however. Without a certificate that Hangzhou Qianwang stating the date it served the responses on RDD Freight and method of service, no use may be made of the responses in this proceeding and they will be stricken from the record. Therefore, it is hereby

ORDERED that on or before March 8, 2018, Hangzhou Qianwang serve on RDD Freight and file with the Secretary a statement setting forth the information required by Commission

Rule 117 for Complainant's Objections and Responses to Respondent's First Set of Interrogatories, Complainant's Objections and Responses to Respondent's First Request for Production of Documents, and the accompanying documents. If Hangzhou Qianwang fails to file the certificate, the responses and documents may be stricken from the record.

FEBRUARY 1, 2018, ORDER PART VI: TELEPHONE CONFERENCE.

The February 1, 2018, order required the parties to appear for a telephone conference on February 28, 2018. The parties were ordered to confer and establish a mutually convenient time for the conference and, on or before February 23, 2018, notify the undersigned at judges@fmc.gov of that time. If both parties were not available on February 28, 2018, the parties are ordered to establish three alternate proposals for the date and time for a telephone conference and notify the undersigned at judges@fmc.gov of those dates and times.

The telephone conference is necessary to ensure that progress is made in this case and to establish a schedule that will lead to resolution. The parties did not notify the undersigned of a mutually convenient date and time for the conference. Neither party appeared for the telephone conference. Failure to appear for a conference as ordered may be grounds to dismiss a party's claims or enter a decision by default against the party. Therefore, it is hereby

ORDERED that the parties appear for a telephone conference on March 15, 2018. The parties are ordered to confer and establish a mutually convenient time for the telephone conference and, on or before March 8, 2018, notify the undersigned at judges@fmc.gov of that time. If both parties are not available on March 15, 2018, the parties are ordered to establish three alternate proposals for time and date (either March 12, 13, or 14, 2018) for a telephone conference and notify the undersigned at judges@fmc.gov of those times and dates proposed for the conference and, on or before March 8, 2018, notify the undersigned at judges@fmc.gov of that time and date.

Hangzhou Qianwang is the complainant in this proceeding. Therefore, the responsibility to initiate the conference between the parties to establish a mutually convenient date and time for the telephone conference falls on Hangzhou Qianwang. If the parties are unable to establish a mutually convenient time, on or before March 8, 2018, each party must file a status report stating why the parties were not able to establish a time. Appropriate sanctions, including entry of a decision on default or dismissal of a party's claims, may be entered against a party that fails to cooperate or fails to appear for the conference.


Clay G. Guthridge
Administrative Law Judge